

26PR00003 Estate of Mary Colyar

County: santa-barbara

Division: Decedent's Estate

Department: 4 SM-Cook

Hearing date: 2026-07-27

Motion: Petition for Authority to Enter Into Contingency Fee Agreement

Source URL: <https://www.santabarbara.courts.ca.gov/tentative-ruling/26pr00003-0>

Source SHA-256: e02c0049f004b16114e8217e14f750643f8a5f547729fff02e341e300991cdcd

Tentative Ruling: Estate of Mary Colyar

Case Number

26PR00003

Case Type

Decedent's Estate

Hearing Date / Time

Mon, 07/27/2026 - 08:30

Nature of Proceedings

Petition for Authority to Enter Into Contingency Fee Agreement

Tentative Ruling

Probate Notes:

Appearances required.

The following is noted for the Court at the hearing:

Decedent, Mary Colyar, apparently failed to maintain real property she owned in the County of Sacramento to the standards of the municipal codes of that polity, and had the subject property deemed "substandard and/or dangerous" pursuant to California Health and Safety Code section 17980 and 17985. On March 20, 2021, a notice of enforcement was filed by the City of Sacramento, Community Development Department, Housing and Dangerous Buildings Division. The City of Sacramento appears to have accumulated \$30,000 or more in fines/penalties against the subject property, which is why a

Professional Fiduciary employed by the City petitioned to be appointed administrator of the estate.

Petitioner, the administrator/PPF of the estate, now requests the Court to enter into a contingency fee agreement with administrator's same estate attorney in order to pursue litigation that attorney deems "is required in order to recover the Decedent's real property that was alienated from the Decedent during her lifetime." That's it. No further explanation.

The contingency fee agreement is atrocious, to say the least. If attorney for the administrator is successful in re-acquiring the property at issue, the proposed agreement allows a 25% recovery of the entire property value without even having to file a pleading, and up to a 40% recovery of the entire property value as a fee if the matter settled within 60 days before a set trial date. (Pet. at exh. A, Artcl. 4, digitl. p. 7.) This is absurd, at best, for the following reasons:

There is ZERO stated value of the lost real property.

There is no explanation how the property was lost. Thus the court does not know what the legal theories of recovery will be, and whether those theories lend themselves to traditional contingency fee scenarios, or whether they are more appropriate in contract remedies that would be compensable via an ordinary request for extraordinary fees at final distribution.

Allowing a 40% recovery fee of a Sacramento City residential property value would so eclipse the statutory fees normally allowable in a probate that it would blot out the sun shining on the heirs' inheritance, and require zero justification for the fees, in direct contrast to that requirement in a request for extraordinary fees.

Accordingly, it is recommended the Court deny the petition and order that only a request for extraordinary fees be filed, if any request for fees above statutory fees be necessary. If not, the two heirs of the estate are very likely to have a significant portion of their inheritance wasted.

Petitioner must come prepared to address these issues at the hearing, and offer alternative suggestions. Petitioner also should file a Declaration outlining, in detail, the facts related to how the property was lost, and what the legal theories of recovery are going to be most likely to prevail.

Due to staffing limitations, processing times may be delayed. To assist in processing, attorneys and parties should include the next court date in the "Filing Description" field provided by the electronic service provider. That field is also used for further descriptions of the document being e-filed, so be sure to put the calendar date FIRST in the field – BEFORE any further description of the document being e-filed (e.g.: 06/28/16 For XYZ).

Judges

Judge Jed Beebe

Dept. 4 SM-Cook

312-C East Cook Street P.O. Box 5369

Santa Maria, CA 93456-5369

US